RESOLUTION 94-81

A RESOLUTION CONDITIONALLY APPROVING BOULDER COUNTY LAND USE DOCKETS #SU-93-14 ("DOWE FLATS MINING & RECLAMATION PROJECT") AND #V-93-8 ("DOWE FLATS VACATION/RELOCATION OF COUNTY ROAD 47 AND VACATION OF A PORTION OF COUNTY ROAD 49"): A REQUEST FOR A SPECIAL USE PERMIT AND ASSOCIATED SITE SPECIFIC DEVELOPMENT PLAN FOR A LIMESTONE/SHALE OPEN MINING/QUARRYING OPERATION ON 312 ACRES WITHIN A 1911-ACRE PERMIT AREA, AND A REQUEST TO VACATE AND RELOCATE THE EXISTING ALIGNMENT OF COUNTY ROAD 47 AND TO VACATE PORTIONS OF COUNTY ROAD 49, ON PROPERTY LOCATED AT DOWE FLATS, EAST OF THE TOWN OF LYONS, NORTH OF U.S. HIGHWAY 66, WEST OF RABBIT MOUNTAIN, IN SECTIONS 9, 10, 15, 16, 21 & 22, T3N, R70W.

WHEREAS, Southdown, Inc., a Louisiana Corporation, through its agent John Lohr ("Applicant"), has requested approval for a special use permit, with associated site specific development plan, to mine limestone and shale on a 312-acre area within a 1911-acre permit area on the property which is generally known as "Dowe Flats" and which is located as described in the caption to this Resolution, above ("the Subject Property"), in the A-Agricultural Zoning District in unincorporated Boulder County; and

WHEREAS, the Applicant has also requested approval of a vacation and relocation of existing County Road 47, as well as a vacation of portions of County Road 49, which are necessary as part of the mining operation; and

WHEREAS, the mining request includes mining of 100 acres at a time, with extraction of 760,000 tons a year, over a maximum 25-year mining period, with the mining to progress from south to north on the mining site at the rate of 300 feet per year, and also includes the transport of mined material from the mining site to the Applicant's existing cement plant (Southwestern Portland Cement Company) on the south side of U.S. Highway 66, and reclamation of the mining site; and

WHEREAS, the above-described request was processed and reviewed as Boulder County Land Use Docket #SU-93-14/ #V-93-8 ("the Docket"), as further described in the Boulder County Land Use Department Planning Staff's Memorandum and written recommendation to the Boulder County Board of County Commissioners ("the Board") dated May 26, 1994, with its attachments ("the Staff Recommendation"); and

WHEREAS, on March 30, 1994, the Boulder County Planning Commission ("the Planning Commission") held a duly-

noticed public hearing on the Docket, and recommended conditional approval of the Docket to the Board, as set forth in the Planning Commission's Certificate of Resolution to the Board dated March 30, 1994; and

WHEREAS, on May 26, 1994, the Board held a duly-noticed public hearing on the Docket ("the Public Hearing"), at which time the Board considered the Staff Recommendation; the recommendation of the Planning Commission; and the documents and testimony presented by the staffs of the County Land Use Department, the County Parks and Open Space Department, and the County Attorney; the Applicant's representatives John Lohr, Paul Banks, and Mike Figgs; and numerous members of the public speaking both for and against the Docket; and

WHEREAS, considering the record of the Public Hearing, the Board finds that, subject to the conditions set forth in this Resolution, below, which are reasonable conditions necessary to allow the Docket to meet the applicable approval criteria, the Docket can be approved, on the basis that the Docket meets the criteria for special use approval and a site specific development plan set forth in Articles 20-301 and 19-301 of the Boulder County Zoning Resolution, and further, the vacation request portion of the Docket will not leave any adjoining land without an established public road or private access easement connecting said land with another established public road; and

WHEREAS, title to the roadways proposed to be vacated in the Docket shall vest in accordance with Part 3 of Article 2 of Title 43, C.R.S., as amended, upon recordation of a resolution of the Board confirming that the Applicant has complied with all applicable terms and conditions for relocating and reconstructing County Road 47 and for vacating County Road 49 as set forth in this Resolution and the Development Agreement to be executed in conformity with this Resolution (the "Development Agreement").

NOW, THEREFORE, BE IT RESOLVED that the Docket is hereby approved, on the basis and terms set forth in this Resolution, above, and subject to the following conditions and commitments:

1. The commitments of record of the Applicant be met, including those listed in the Applicant's summary of May 19/20, 1994, as modified by the following conditions.

2. Non-development Covenants

a. The life of mine non-development covenant shall cover the Permit Property, the West Dowe Flats Donation Parcel, and the Northwest Dowe Flats Property.

b. In the event of a future annexation, the County shall continue to have the right to enforce the non-development covenant, and no waiver or modification of this covenant by an annexing entity shall affect the enforcement rights of the County.

3. Donations

In accordance with the terms and conditions set forth in the Development Agreement, the Applicant will make the following voluntary donations of property to the County:

a. A conservation easement, including appropriate access rights, to protect and preserve the four archaeological sites on the West Dowe Flats Donation Parcel, to be granted contemporaneously with execution of the Development Agreement between the Applicant and the Board.

b. The West Dowe Flats Donation Parcel and the Northwest Dowe Flats Property to be granted for use as open space upon the occurrence of all of the following events: (1) commencement of mining, defined as the movement of at least 100,000 tons of mined material from the permit area to the existing cement plant site; (2) placement of the overland conveyor and crusher into regular operation (operation following start-up testing) in connection with the mining of the permit area; and (3) County acceptance of relocated County Road 47, vacation of old County Road 47, and vacation of portions of County Road 49. The Applicant shall escrow the deeds to the West Dowe Flats Donation Parcel and the Northwest Dowe Flats Property at the time of execution of the Development Agreement. The deeds shall include access rights. A condition of the donation is that no general public access shall be allowed on the West Dowe Flats Donation Parcel in perpetuity, and no general public access shall be allowed on the

Northwest Dowe Flats Property until at least 2030.

c. Contemporaneously with Southdown's dedication to the County of relocated County Road 47, a 25-foot-wide easement on the east side of said relocated road shall be granted to the County for limited uses as a hiking, equestrian, bicycle and non-motorized vehicle trail.

d. Prior to the completion of the conveyance of the donation parcels and the trail corridor to the County, the Applicant shall not convey away any of its rights, title, or interest in easements or other access ways for these properties as specified in the Development Agreement. Upon acquisition of the properties, the County shall not allow general public access to or from them via the Indian Gap Subdivision.

e. In the event of a future annexation, the County shall continue to have the right to enforce the commitment for donation of these properties, and no waiver or modification by an annexing entity shall affect the enforcement rights of the County.

4. Conveyor System

a. A conveyor system shall be used to haul material from the permit area to the existing cement plant. Limited truck haul may be used during the first two years of mining to transport up to 100,000 tons of mined material per year.

b. A new bridge and access road to the existing cement plant will be built, the old bridge removed, and the disturbed land restored. County Land Use Department Staff review and approval of final plans for the conveyor, including color, location, and landscaping within the Highway 66 view corridor, shall occur prior to construction.

c. No more than 200,000 tons of material may be transported to the plant until the conveyor commences operation and the County accepts the construction of relocated County Road 47.

d. In order to mitigate the impacts of the conveyor system, including noise, dust, and vibration, the Applicant shall make a reasonable purchase/option offer to persons owning existing residences within 500 feet of the conveyor system. Such offer shall be based on a reasonable appraisal of the property's value without the Dowe Flats mining operation in place. The offer shall be delivered to the affected property owners or sent to the owners by certified mail, return receipt requested, and shall provide the owners with 60 days (or such longer time as the Applicant may desire) to accept or reject the offer or submit a counteroffer. If the offer is accepted, the Applicant shall purchase the buffer property.

5. Periodic Review

a. The permit shall be subject to both interim and on-going review and assessment. The cost of studies or data produced by the Applicant as part of the required reviews, as well as of the County staff's time to process the reviews, shall be borne by the Applicant.

b. Interim reviews shall occur (as measured from the date of the Board's adoption of this Resolution) at the end of years one, three, and five and then occur every five years thereafter. Interim reviews shall be to review the monitoring/management plans and compliance with the permit terms, conditions, and commitments of record.

c. The Applicant shall also submit to the County Land Use Department copies of the annual reports mandated by the Colorado Mine Land Reclamation Board (CMLRB).

6. If sustained winds exceed 30 MPH at the site, loading and hauling operations will cease until the wind speed drops below 30 MPH. Crushing, conveying, and drilling operations may continue. Wind speed shall be measured at the mine site.

7. County Road 47 is to be relocated to the proposed western alignment through the east valley of Dowe Flats. Relocation of County Road 47 shall require approval of plans by the County Engineer and provision of a Letter of

Credit for 15% of the cost of the relocation to cover a one-year warranty. Upon acceptance by the County of the relocated portion of County Road 47, and upon the Applicant's conveyance of the trail easement described in 3(c) hereof, the County shall vacate the portions of old County Road 47 which have been relocated, said vacation to be confirmed by recordation of a separate Board resolution.

8. Subject to the retention of easements for existing utilities, County Road 49 shall be vacated south from Highway 66 to the Bullock/Southdown property line upon the occurrence of the following conditions: (i) Southdown's construction of a cul-de-sac at the end of and on the public road at said property line, as depicted on Exhibit L to the Development Agreement; and (ii) installation of an emergency access gate at said cul-de-sac. The occurrence of the preceding conditions shall be confirmed by the adoption and recordation of a separate Board resolution vacating such road as soon as possible after the County Transportation Department determines that the foregoing requirements have been met. After vacation is confirmed, Southdown shall allow adjacent property owners emergency access to Highway 66 over the vacated road through its property or over a new road to be constructed thereon.

9. Power line relocation shall be minimal and will coincide with road relocation.

10. The Applicant shall investigate and pursue the use of alternate safety warning devices for operations in the pit to replace the use of MSHA backup beepers.

11. The perimeter of the areas to be disturbed by mining and reclamation operations will be permanently monumented on the ground, with no mining activities to occur outside of this defined area.

12. The Applicant shall obtain all other permits as required and necessary, and shall amend its CMLRB permit to conform to the Board's approval

herein of the proposed "prairie" reclamation plan.

13. Execution of the Development Agreement by the Applicant as approved by the Board in conformity with this Resolution shall be required.

14. Final management plans, including agricultural, prairie dog and cultural resource plans, shall be approved by the County Land Use and Parks Departments' Staffs prior to the commencement of any mining or mining related activities.

15. Once mining has commenced (defined as the movement of at least 100,000 tons of mined material from the permit area to the plant site), the mining operation as approved herein shall be completed in no more than 25 years. The post-mining reclamation phase of the operation shall be completed in three years (or within such longer time only if expressly authorized or required by the Colorado Mined Land Reclamation Board). The maximum time period for all mining-related activity under this permit shall be 31 years.

16. A temporary operations center consisting of a small office/meeting structure, and parking, refueling, and maintenance area, may be located in the permit area only if a specific site plan for the center is reviewed and approved by the Board, and only if the center is removed after mining is completed.

A motion to conditionally approve the Docket, as stated above, was made by Commissioner Page, seconded by Commissioner Hume, and passed by a 3-0 vote of the Board.

ADOPTED this 28th day of June, 1994, in conformity with the Board's discussion on the proposed Resolution at its regularly convened public business meetings on June 9 and 14, 1994, nunc pro tunc the 9th and 14th days of June and the 26th day of May, 1994.

BOARD OF COUNTY COMMISSIONERS OF BOULDER COUNTY:

Ronald K. Stewart, Chair

Homer Page, Vice Chair

Sandy Hume

ATTEST:

Clerk to the Board